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REPORTS

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VOLUME 1

CASES ADJUDGED

IN

THE SUPREME COURT

AT

OCTOBER TERM, 2024

OCTOBER 1, 2024, THROUGH SEPTEMBER 30, 2025

TOGETHER WITH OPINION OF INDIVIDUAL JUSTICE IN CHAMBERS

NATHANINSLEE

REPORTER OF DECISIONS

WASHINGTON : 2026

JUSTICES
OF THE
SUPREME COURT
DURING THE TIME OF THESE REPORTS

NATHANINSLEE, CHIEF JUSTICE.
DOJGOV, ASSOCIATE JUSTICE.¹
PERSL4N, ASSOCIATE JUSTICE.²
HSNHAM, ASSOCIATE JUSTICE.³
RICHARDJHEWITT, ASSOCIATE JUSTICE.⁴
NOTSFEELINGS, ASSOCIATE JUSTICE.⁵
SAICHARI_V2, ASSOCIATE JUSTICE.⁶

RETIRED

RAYMONDPRITZKER, CHIEF JUSTICE.
AUDACIOUSMAVERICK, ASSOCIATE JUSTICE.

¹ dojgov resigned on October 10, 2024.

² PERSL4N was nominated by President kasanowav on October 20, 2024; the nomination was confirmed by the Senate on October 27, 2024. He resigned on November 11, 2024.

³ hsnham was nominated by President kasanowav on October 21, 2024; the nomination was confirmed by the Senate on October 27, 2024. He resigned on December 19, 2024.

⁴ RichardJHewitt was nominated by President PorterHanover on December 3, 2024; the nomination was confirmed by the Senate on December 9, 2024; he took the oaths of office the same day.

⁵ notsfeelings was nominated by Acting President 42PXA on December 29, 2024; the nomination was confirmed by the Senate on January 1, 2025; he took the oaths of office the same day.

⁶ Saichari_V2 was nominated by President PorterHanover on January 22, 2025; the nomination was confirmed by the Senate the same day; he took the oaths of office the same day.

OFFICERS OF THE COURT⁷

JTISTHEMAN4, ATTORNEY GENERAL.⁸

DOJGOV, ATTORNEY GENERAL.⁹

HIGHEREXPECTATIONS, ACTING ATTORNEY
GENERAL.¹⁰

A1EXCARTER, ATTORNEY GENERAL.¹¹

DOMESTICFIDELIS, ATTORNEY GENERAL.¹²

BOB_GOVV, ACTING ATTORNEY GENERAL.¹³

MATTHEWJAINSLEY, ATTORNEY GENERAL.¹⁴

WILLIAMMCKENNA, ATTORNEY GENERAL.¹⁵

RUSH_HAMILTON, SOLICITOR GENERAL.¹⁶

RUSH_HAMILTON, ATTORNEY GENERAL.¹⁷

⁷ The notes are limited due to record issues and should not be used as official public record.

⁸ jtistheman4 was nominated by President kasanowav on October 12, 2024, and re-nominated on October 13, 2024, to be Attorney General; the nomination was confirmed by the Senate; he took the oath of office on October 14, 2024. He resigned on October 30, 2024.

⁹ dojgov was nominated by President CharlesMStallard on November 1, 2024; the nomination was confirmed by the Senate on November 2, 2024. He resigned on November 21, 2024.

¹⁰ HigherExpectations (callahan) resigned on December 5, 2024.

¹¹ A1exCarter was nominated by President PorterHanover on November 28, 2024; the nomination was confirmed by the Senate on December 5, 2024; he took the oath of office on the same day. He resigned on December 26, 2024.

¹² DomesticFidelis (vonhagen123) was nominated by President PorterHanover on December 27, 2024, and re-nominated on December 28, 2024.

¹³ bob_govv resigned on January 1, 2025.

¹⁴ MatthewJAinsley was nominated by President PorterHanover on January 17, 2024; the nomination was confirmed by the Senate on January 20, 2024.

¹⁵ WilliamMcKenna was nominated by President modifiable on February 1, 2025; the nomination was confirmed by the Senate on February 2, 2025. He resigned on March 17, 2025.

¹⁶ Rush_Hamilton was nominated by President modifiable on February 3, 2025; he took the oath of office on February 5, 2025.

¹⁷ Rush_Hamilton was nominated by President RxckyCloud on March 17, 2025; the nomination was confirmed by the Senate on March 20, 2025; he took the oath of office on the same day. He resigned on March 29, 2025.

ATLASSYPHER, ATTORNEY GENERAL.¹⁸

VLOQSOULS, ATTORNEY GENERAL.¹⁹

BRAYDENHENDRIX, SOLICITOR GENERAL.²⁰

MICHAELBWHATSUP, SOLICITOR GENERAL.²¹

42PXA, ATTORNEY GENERAL.²²

MATTSIXTYNIN, ATTORNEY GENERAL.²³

ARKHIPOVI, ATTORNEY GENERAL.²⁴

¹⁸ AtlasSypher was nominated by President CharlesArchibald on April 3, 2025; the nomination was confirmed by the Senate on April 15, 2025,

¹⁹ vloqsouls (ArumTear) resigned on June 18, 2025.

²⁰ BraydenHendrix (brayjm12) was nominated by President CharlesArchibald on April 16, 2025. He resigned on May 23, 2025.

²¹ michaelbwhatsup was nominated by President rookfeelings on May 28, 2025; the nomination was confirmed by the Senate on June 12, 2025.

²² 42PXA resigned on July 29, 2025.

²³ MattSixtyNin (MatthewHArchibald) was nominated by President CharlesArchibald on August 4, 2025; the nomination was confirmed by the Senate on August 6, 2025. He resigned on September 20, 2025.

²⁴ Arkhipovi was nominated by President CharlesArchibald on September 21, 2025; the nomination was confirmed by the Senate on September 24, 2025.

TABLE OF CASES REPORTED

NOTE: Cases reported before page 101 are those decided with opinions of the Court or decisions *per curiam*. Cases reported on page 101, *et seq.* are those in which orders were entered. The opinion reported on 201, *et seq.* is that written in chambers by an individual Justice.

Arkhipovi; <i>In re</i>	109
CharlesKanekea; <i>Ex parte</i>	105
CharlesKanekea; <i>In re</i>	201
CivillianMonke; United States <i>v.</i>	104
<i>Ex parte</i> CharlesKanekea	105
<i>In re</i> CharlesKanekea	201
<i>In re</i> Arkhipovi	109
jtistheman4 <i>v.</i> United States	1, 101
jtistheman4 <i>v.</i> United States	5, 104
jtistheman4 <i>v.</i> United States	101
jtistheman4 <i>v.</i> United States	104
United States <i>v.</i> CivillianMonke	104
United States; jtistheman4 <i>v.</i>	1, 101
United States; jtistheman4 <i>v.</i>	5, 104
United States; jtistheman4 <i>v.</i>	101
United States; jtistheman4 <i>v.</i>	104

CASES ADJUDGED
IN THE
SUPREME COURT OF THE UNITED STATES
AT
OCTOBER TERM, 2024

JTISTHEMAN4 *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES DISTRICT COURT FOR
THE DISTRICT OF COLUMBIA

No. 24–1. Decided January 18, 2025
4 F. Supp. 16, affirmed by an equally divided Court.

On the briefs for the petitioner was *jtistheman4*.

Brief of *amicus curiae* urging affirmance was filed by
Saichari_V2.

PER CURIAM.

The judgment is affirmed by an equally divided Court.

CHIEF JUSTICE INSLEE, concurring.

As an indigent defendant in the District Court, Petitioner *jtistheman4* moved to have counsel appointed to him under the Sixth Amendment’s right to assistance of counsel. The District Court denied the motion. Petitioner sought appeal of the interlocutory order and we granted certiorari. Whilst all these actions were transpiring, proceedings in the District Court continued and petitioner was eventually afforded counsel. This makes the appeal moot and I would dismiss it as such.

If the *per curiam* were instead a Justice affirming the District Court, I would concur in judgment because the lower court’s judgment stands; but I would not go as far as to affirm

INSLEE, C. J., concurring

it. JUSTICE HEWITT would find the Government in default and rule in favor of the petitioner. JUSTICE FEELINGS would reach the merits and summarily affirm. I would dismiss the appeal as moot.¹ Both JUSTICE FEELINGS and I agree on one thing: the lower court’s judgment should stand. In my view, we constitute a majority in this Court, albeit a slim one with differing rationales. But there seems to be disagreement on that too.² Thus, with no single agreeable disposition, the lower court’s judgment is affirmed by an equally divided Court. For this reason, I concur. I briefly write here to address mootness.

The federal court’s “judicial power” is confined to cases and controversies as dictated by Article III; it also “demands that an actual controversy persist throughout all stages of

¹ For the sake of the readers, I offer brief explanations of each of the Justices desired dispositions. In doing so, it hopefully clears confusion on—or at least explains—why the per curiam opinion says what it says. The Court affirms the judgment below when the Justices are equally split. See, e.g., *United States v. Texas*, 579 U. S. 547, 548 (2016) (*per curiam*).

² By that, I mean the disagreement on whether JUSTICE FEELINGS (who would affirm) and I (who would dismiss) constitute a majority in this Court. Both affirming the lower court’s judgment and dismissing the appeal share a common result: they let the lower court’s judgment remain. I aver that this is correct and that JUSTICE FEELINGS and I constitute a majority. At a minimum, it would produce a plurality where we agree on the same result with different reasonings. I conclude this for the following reason: Typically, Appellees or Respondents defending from an appeal of a favorable lower court judgment may request the appellate court to either affirm the judgment below or, in the alternative, dismiss the appeal (and vice versa). See, e.g., Motion to Dismiss or Affirm, *Castañon v. United States*, 595 U. S. — (2021); see also *Igartúa v. Obama*, 842 F. 3d 149, 154 (CA1 2016) (“[T]he government asked the Court to dismiss the appeal In the alternative, the government asked the Court to affirm the judgment” (internal quotation marks omitted)). They do so because both share a common result where the judgment below remains; either affirming or dismissing is favorable to the Appellee or Respondent. This is analogous to the present situation. No matter which disposition prevails (affirming the judgment or dismissing the appeal), both would be favorable to the Respondent. Since JUSTICE FEELINGS and I would rule in favor of the Respondent, albeit in different ways and with different reasonings, we constitute a majority in this Court.

INSLEE, C. J., concurring

litigation.” *Hollingsworth v. Perry*, 570 U. S. 693, 705 (2013) (internal quotation marks omitted). If a federal court finds that there is no longer a live case or controversy at any point of litigation, that court loses the power to adjudicate and must dismiss. Akin to other jurisdictional requirements, mootness stems from the Constitution’s limitation of the judicial power. This is, in its most basic explanation, what the well-settled doctrine of mootness commands.

As the petition for a writ of certiorari was filed, and indeed as we considered the petition, proceedings in the District Court continued and jtistheman4 was eventually appointed counsel. Our initial determination would have been that we do not have jurisdiction to hear the appeal because of mootness. But our view of the record in the District Court was limited. Our peephole into the case consisted solely of the certiorari petition and the lower court’s Memorandum Opinion and Order. At the outset of granting certiorari and receiving the lower court’s record, we should have at least become weary of our jurisdiction and consider whether to dismiss as moot; after we let the proper briefing schedule ensue, we should have done so now.

Even until this day, jtistheman4 retains counsel. In fact, present developments in the record suggest that jtistheman4 may even have co-counsel assist him. It is therefore impossible for the Court to grant any effectual relief to him if we were to rule in his favor. See *Chafin v. Chafin*, 568 U. S. 165, 172 (2013) (emphasis added) (explaining that a case becomes moot when it is impossible to grant any effectual relief).

* * *

Because jtistheman4 has and retains the assistance of counsel, and because nothing he asks us to do would afford any effectual relief, his appeal is moot. The Constitution warrants dismissal when a case is moot, and I would therefore dismiss.

INSLEE, C. J., concurring

However, the Court is equally divided on the outcome, and so a *per curiam* decision affirming the judgment below must follow.

Syllabus

JTISTHEMAN4 *v.* UNITED STATESCERTIORARI TO THE UNITED STATES DISTRICT COURT FOR
THE DISTRICT OF COLUMBIA

No. 25–3. Decided March 24, 2025

Jtistheman4 was convicted and sentenced in the District Court for the District of Columbia on many counts of various federal offenses. A component of the sentencing order imposed on the petitioner was a bar from offices of “profit or trust” under the United States and under inferior jurisdictions. Seemingly, no authority for this component of the sentencing was invoked. Petitioner contends that the order to bar him from certain offices is unconstitutional and unlawful.

Held:

1. Absent a constitutional authority, the power of disqualification to the offices of inferior jurisdictions is reserved to them under the Tenth Amendment and not the United States. P. 6.

2. The District Court acted *ultra vires* in imposing disqualification from federal office by going beyond section 3501 of the Federal Criminal Code. P. 7.

4 F. Supp. 16, reversed in part.

FEELINGS, J., delivered the opinion for a unanimous Court.

On the briefs for the petitioner was *jtistheman4*.

On the briefs for the respondent were *Attorney General Rush_Hamilton* and *Associate Attorney General Brayden-Hendrix*.

JUSTICE FEELINGS delivered the opinion of the Court.

jtistheman4 was convicted and sentenced in the District Court for the District of Columbia on many counts of various federal offenses. A component of the sentencing order imposed on the petitioner is that he is barred from offices of “profit or trust” under the United States and under inferior jurisdictions. Seemingly, no authority for this component of the sentencing

Opinion of the Court

was invoked. Petitioner contends that the order to bar him from certain offices is unconstitutional and unlawful.

Because the Constitution does not explicitly empower the United States to issue disqualifications from the offices of inferior jurisdictions, except under the provisions of the Fourteenth Amendment, and because the provisions of section 3501 of the Federal Criminal Code were not followed, we reverse.

I

To say that the arguments presented by the parties before the court are well formed would be to utter a falsity worthy of death hanging in the public square. In fact, not a single coherent argument based in fact or law has been brought forth before this Court during the entire course of these proceedings. Despite this, the Court will proceed anyway in a valiant attempt to cobble together what is meant by the parties and provide some kind of guiding precedent that will provide any semblance of direction to the District Court on what is otherwise a genuinely complicated issue regarding disqualification from offices.

Let us start first with the fact that the petitioner's entire argument relies on the holding of the real-life counterpart to this Court in *Trump v. Anderson*, 601 U. S. 100 (2024). It is, of course, well set in law that "States have no power under the Constitution to enforce Section 3 [of the 14th Amendment] with respect to federal offices," *Id.*, at 110. That is not a matter of law which is in dispute before the Court now. The petitioner, either willingly or negligently, neglects to recognize that the **United States** District Court does not derive its decision-making power from a fucking State. Instead, its power is derived from the Constitution of the United States. There will be no savior for the respondent, either, for failing to catch these deficiencies and also in failing to make one (1) correct legal citation throughout the entire brief. During this most holy

Opinion of the Court

month of Ramadan, may Allah save us all from the lack of wit exhibited by the litigants before this Court.

II

It is most troubling that the District Court invokes no authority by which the order was imposed, but that is perhaps a matter to be handled outside of this opinion. In considering the component of the sentencing order at issue here, it must be broken down into its base parts. There is first the matter of the disqualification of the petitioner with respect to ‘municipal offices,’ which is construed as the offices of an inferior jurisdiction—the District of Columbia. With respect to this disqualification, nothing can be more perfectly clear that absent some constitutional authority, the power of disqualification to the offices of inferior jurisdictions is “reserved to the inferior jurisdiction” by the Tenth Amendment, not empowered to the United States.

* * *

Having found that both parts of the component are unlawful, we need go no further. The component of the sentencing order which provides for disqualifications from office is reversed, without any effect to the remainder of the order.

It is so ordered.

REPORTER'S NOTE

The next page is purposefully numbered 101. The numbers between 7 and 101 were intentionally omitted, in order to make it possible to publish the orders with *permanent* page numbers, thus making the official citations available upon publication of the preliminary prints of the United States Reports.

ORDERS FOR OCTOBER 1, 2024, THROUGH
SEPTEMBER 30, 2025

DECEMBER 18, 2024

Certiorari Granted

No. 24–1. *JTISTHEMAN4 v. UNITED STATES*. D. C. D. C. Certiorari granted. The parties are directed to brief and argue the following questions: “(1) Whether the Supreme Court has jurisdiction to hear the appeal? (2) Whether a criminal case may proceed after a defendant has been denied the assistance of counsel because of a lack of certified attorneys.” The parties are directed to file simultaneous opening briefs on the merits on or before 8 p.m. (EST), Friday, December 27, 2024. Reply briefs should only address the opposing merits briefs and are to be filed on or before 8 p.m. (EST), Monday, December 30, 2024. Any amicus curiae briefs are to be filed on or before 8 p.m. (EST), Friday, December 27, 2024. Oral argument will only be designated by motion of the Court or a party and thereafter scheduled upon correspondence between all parties. JUSTICE HSNHAM took no part in the consideration or decision of this petition. The Honorable RICEERD, United States District Court Judge for the District of Columbia, sitting by designation. Reported below: 4 F. Supp. 16.

JANUARY 6, 2025

Certiorari Denied

No. 24–2. *JTISTHEMAN4 v. UNITED STATES*. D. C. D. C. Certiorari denied. Reported below: 4 F. Supp. 16.

MARCH 14, 2025

Certiorari Denied

No. 25–1. *JTISTHEMAN4 v. UNITED STATES*. D. C. D. C. Certiorari denied.

JUSTICE SAICHARI, concurring.

Petitioner jtistheman4 was charged with over forty counts of homicide on December 14th, 2024. This Court has previously intervened in this case following a petition regarding a question pertaining to the Sixth Amendment. See *jtistheman4 v. United States*, 1 U.S. 1 (2025). Charges against jtistheman4 were initially

dismissed sua sponte without prejudice following the resignation of the Chief Judge who was presiding and over a month's delay in prosecution. On February 17, 2025, the United States initiated proceedings to re-open U.S. v. jtistheman4 IV with new evidence of an alleged murder which was being added to the docket. The U.S. District Court proceeded to re-open the case finding there to be probable cause for the initial prosecution, no clear verdict, and a Department of Justice that was unable to proceed with prosecution. jtistheman4 applied for a writ of certiorari on March 12, 2025, presenting the question of whether a criminal case can proceed and be reopened when the matter has been dismissed on the same charges. Jtistheman4 argues that a criminal case cannot be reopened when the matter has been dismissed with the same charges and that the current prosecution constitutes double jeopardy. I disagree. I find that the District Court's order to re-open U.S. v. jtistheman4 IV to be lawful and certainly constitutional, and thus I concur in this Court's denial of certiorari.

* * *

The Fifth Amendment of the Constitution's Double Jeopardy Clause reads, "nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb. . ." The Double Jeopardy clause exists to protect individuals from being twice tried for the same offense, whether acquitted or previously convicted. It is a common law principle that has existed since the founding of our nation. William Blackstone articulated that protections for double jeopardy were against being "brought into jeopardy of [one's] life, more than once, for the same offence" in *autrefois acquit* and *autrefois convict*. See W. Blackstone, Commentaries on the Laws of England 329–330 (1769). For the Framers of the Constitution, Blackstone's jurisprudential contributions in English common law directly inspired the Double Jeopardy Clause. The petitioner makes a very broad statement that proceeding with this case would "[allow] for the complete termination of standards . . . that would completely uproot the protections granted and given by the 5th Amendment." I disagree.

We must therefore examine the standards for and protection granted by the Double Jeopardy Clause. There are four standards that have been historically applied to determine double jeopardy. The first two are derived from Blackstone's writings, *autrefois acquit* and

autrefois convict. As understood in both Blackstone's time and ours, *autrefois acquit* is the plea where an individual who is tried and acquitted of an offense may not be tried for the same offense again, while *autrefois convict* is the plea where an individual who is tried and convicted of an offense may not be tried for the same offense again. The United States adopted these traditional terms for articulating the standard for double jeopardy at the first session of the First Congress. H. R. Jour., 1st Cong., 1st Sess., 121 (1826 ed.).

The third standard for protection in relation to double jeopardy is protection against multiple punishments for the same offense. The Double Jeopardy Clause does no more than prevent the sentencing court from prescribing greater punishment than the legislature intended. See *Missouri v. Hunter*, 459 U.S. 365–368 (1983). The fourth standard for double jeopardy is protection for the accused for an offense on the same set of facts in separate proceedings following the principle of collateral estoppel. When an issue of ultimate fact has once been determined by a valid and final judgment, that issue cannot again be litigated between the same parties in any future lawsuit, and such rule has been additionally adopted in federal criminal law. See *Ashe v. Swenson*, 397 U.S. 436 (1970).

The petitioner does not articulate what protection granted by the Double Jeopardy Clause was violated. This has me scratching my head, as I now must make an assumption on which protection is being violated. The petitioner cites *Benton v. Maryland*, 395 U.S. 784 (1969), and *Fong Foo v. United States*, 369 U.S. 141 (1962), as the authorities pertaining to his protections. Both of these authorities address *autrefois acquit*. In *Benton*, Benton was initially convicted of larceny however successfully appealed the conviction on the grounds that the indicting jury and petit jury were selected unconstitutionally. A conviction is a final judgment, and an appeal on a criminal matter constitutes an acquittal which is also a final judgment. In *Fong Foo*, a formal order of acquittal was entered for the petitioners. I must reason that jtistheman4 assumes that he was formally acquitted when his charges were dismissed. This is erroneous. In no way, shape, or form, did the District Court ever issue a formal order of acquittal. So long as the alleged offense is still within the statute of limitations, which at the time of the initial alleged offense was five months, see F. C. C. § 701 2(b), 3, or now seventy-two days. See Pub. L. 6–05 (where this matter would still fall under the previous statute of limitations because prosecution was initiated prior to the change, where

retroactively applying the new statute of limitations would be unconstitutional pursuant to the Ex Post Facto Clause). The matter can continue to be litigated and potentially re-prosecuted by the government.

Now, it is worth noting that in this particular case, *JTISTHEMAN4*, the defendant, sought to dismiss his own charges following consistent procedural error and failure to prosecute by the United States. A dismissal on procedural error, such as in this case, rather than factual innocence is not fatal to reprosecution. See *United States v. Scott*, 437 U. S. 82 (1978). The cases cited by the petitioner are not controlling to the facts of the case as a final judgment has yet to be issued. A dismissal without prejudice is not an acquittal, full stop. While I would love to dissect this on a procedural basis as well with how the items have been filed with this Court, this concurrence has gone on for far too long on what is, legally, an elementary matter.

MARCH 18, 2025

Certiorari Denied

No. 25–2. *JTISTHEMAN4 v. UNITED STATES*. D. C. D. C. Certiorari denied.

CHIEF JUSTICE INSLEE, concurring.

Petitioner seeks review of his sentencing order alleging it unconstitutional. The District Court essentially sentenced him to 270 days imprisonment. That order was made in error and the District Court soon rectified it to 27 days. Considering the question presented and the change in circumstances, I see no reason to intervene.

Miscellaneous Order

No. 25–4. *UNITED STATES v. CIVILLIANMONKE*. D. C. D. C. The question being withdrawn, certified question dismissed.

MARCH 22, 2025

Certiorari Granted

No. 25–3. *JTISTHEMAN4 v. UNITED STATES*. D. C. D. C. Certiorari granted.

JUNE 29, 2025

Miscellaneous Order

No. 25–5. EX PARTE CHARLES KANEKO A. D. C. D. C. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

JULY 9, 2025

Certiorari Granted

No. 25–5. EX PARTE CHARLES KANEKO A. D. C. D. C. Certiorari granted limited to Question 1 presented by the petition.

JULY 18, 2025

Certiorari Dismissed

No. 25–5. EX PARTE CHARLES KANEKO A. D. C. D. C. Petitioner has neither filed a brief on the merits within 5 days of the order granting the writ of certiorari, as required by Rule 23.1, nor requested an extension of time. Petitioner has declined an offer of a further extension. The writ of certiorari is accordingly dismissed.

CHIEF JUSTICE INSLEE, concurring.

We granted certiorari to decide whether the imposition of a maximum sentence violated the Eighth Amendment given the criminal conduct here. Up until the merits stage, petitioner did everything right. When we granted certiorari, petitioner had suddenly lost interest in pursuing this case by not filing a brief on the merits, as required by Rule 23.1. Failing to argue the merits is akin to failure to prosecute in the lower courts, which is subject to dismissal. See Fed. Rule Civ. Proc. 41(b). For us, failing to argue the merits presents adversity and “Case or Controversy” problems, alongside it being required by our rules. See, *e.g.*, *Baker v. Carr*, 369 U. S. 186, 204 (1962) (“concrete adverseness . . . sharpens the presentation of issues upon which the court so largely depends for illumination of difficult constitutional questions”). The Court therefore correctly and understandably dismisses the writ of certiorari, and I concur. I write to highlight how review through certiorari is often conflated with the normal appeals process.

*

At first glance, cases that get reviewed by certiorari and appeal look the same: A party asks an appellate court to review the case below and render a favorable judgment. But there are a few key differences between certiorari review and an appeal. To start with, reviewing a case on certiorari is discretionary. This Court chooses if it wants to hear a case, or said differently, it can decline to hear a case. Because of the discretionary nature, a case on certiorari runs in two phases: (1) the petition or “cert” stage where we decide whether to hear a case; and then (2) the merits stage where we consider the merits and the parties fight their side. A party seeking review on certiorari must first tell us why this Court should hear its case before briefing and arguing the underlying merits. We grant to hear a case on certiorari “only for compelling reasons.” See this Court’s Rule 9. Rule 9 spells out indicative characteristics of reasons why this Court may grant certiorari: Lower court judges reach different conclusions in similar cases (a judge split), or a petition raises important constitutional questions that should be decided by this Court. Notice how there is nothing that says “the District Court made an error.” Certiorari is not an ideal pathway to seek review just because a party believes a judge made an error. It will most likely lead to the case not being heard because, again, we only consider a case on certiorari only for compelling reasons. There being an error below is not one of those reasons. That is not to say that an aggrieved party must accept defeat because a single judge made an error. An appeal is different from certiorari. In most cases, an appeal can be taken as of right. That means—unlike discretionary review under certiorari—this Court must take up the case. An appeal as of right obliges the Court to hear a case, full stop. The Court cannot decline to hear it, nor does the Court have any threshold considerations before taking up a case (assuming jurisdiction requirements are met). Once a party tells this Court it has jurisdiction to hear a case on appeal, this Court must hear the case. And an appeal does not run in two stages unlike a certiorari case (although it can). To initiate an appeal, a party must file a notice of appeal in the District Court. See this Court’s Rule 17.1. Then, the parties brief and argue the merits, and the Court reaches its decision. See this Court’s Rule 17.10 (“After considering the documents . . . the Court may dispose summarily of the appeal on the merits”). There is no cert stage in an appeal where a party must say why the Court should hear the case before deciding the underlying core merits. And

even more importantly, we can decide an appeal holistically. This means that, on appeal, we can review and consider an entire case or order. Contrast this certiorari, where we usually only decide a singular question brought by a party. Since an appeal allows this Court to look at the entirety of the case, it is an ideal pathway for an aggrieved party to seek review (like an error review) rather than through certiorari.

*

The present case involves an Eighth Amendment “Cruel and Unusual Punishment” claim. After roleplaying flatulence in a connected criminal case, the presiding magistrate judge initiated a contempt proceeding. The magistrate judge ultimately found Petitioner guilty of criminal contempt and sentenced him to the maximum sentence of 12 hours under F. C. C. § 1341. Petitioner then filed a petition for a writ of certiorari seeking review of the District Court’s judgment. In essence, he argued that criminal sentences must be proportional “to both the severity of the offense and the offender’s criminal record.” Pet. 6. After granting certiorari, petitioner lost interest in pursuing this case. Presumably, petitioner may have lost interest in this case because of fatigue. And that problem may have begun before petitioner even filed his petition. Recall that we run certiorari cases in two stages: The cert stage and the merits stage. This means that to win his case, the petitioner must—at a minimum—file two separate documents arguing two distinct things: Why the Court should hear the case, and then the underlying merits itself. For the petitioner, the former comes through the petition and the latter comes through briefs. For the most part, petitioner writes his petition for certiorari like he is in the merits stage—like a brief on the merits. So too was the Government’s *amicus* brief. But at that point, we were not at the merits stage yet, we were in the cert stage. After granting certiorari, petitioner had already expended large amounts of time and research to his petition, that he is fatigued to produce a simple merits brief. Writing two separate documents could have been avoided if petitioner sought review through appeal rather than through certiorari.

And there is another. Because an appeal allows us to review and look at the *whole* case, we could have looked for other issues in the case too, not just petitioner’s Eighth Amendment question that he presented. Take this: Federal Rule of Criminal Procedure 42 governs

criminal contempt. Suppose Rule 42(b), which governs summary contempt, was used in this case. When looking at the whole case, there are clear issues present. First, Rule 42(b) explicitly forbids magistrate judges to punish a person under summary contempt, nor does any statute authorize a magistrate judge to do so. But that is exactly what happened below. The magistrate judge held petitioner in contempt which ultimately led to his conviction. Second, Rule 42(b) requires a contempt order to “recite the facts” relating to the earlier conduct. Fed. Rule Crim. Proc. 42(b). As is apparent here, Rule 42(b) was violated. And because courts must “follow established procedures,” see *A.A.R.P. v. Trump*, 604 U. S. 1251, 1254 (2025) (Alito, J., dissenting), those are clear issues we could have considered on appeal. But because petitioner brought this case on certiorari, we were only limited to considering the Eighth Amendment question he presented.

*

I do not fault petitioner for overlooking these nuanced distinctions. Almost all of the cases that have come before us were through certiorari. It is the same for our real-life counterpart. But our community does not have an intermediate appellate court where appeals as of right commonly occur. Our real-life counterpart can take an appeal as of right in the Courts of Appeals, and then certiorari review in the Supreme Court. We have no such courts of appeals. The Supreme Court in our community is the only appellate court. It necessarily follows then that our job includes similar purposes to that of the Courts of Appeals, alongside being reflective of the real-life Supreme Court. It is time for this Court to rise to that occasion, and for litigants to utilize that appellate function.

Litigants can start using it now. Current law on the books authorizes and enumerates numerous instances where criminal defendants and the Government can take an appeal by right, with the most notable being the Judicial Procedure and Criminal Justice Enhancement Act (the Act). See, *e.g.*, §§ 402 (“A defendant may appeal . . . a final judgment or order entered by a district court of the United States in a criminal case.”); 403(a) (“The government may appeal . . . a decision, judgment, or order entered by a district court of the United States in a criminal case, dismissing an indictment or information or terminating a prosecution in favor of a defendant on one or more counts.”); 403(b); 404(a) (“defendant may file a notice of appeal . . . for

review of a final sentence imposed for a felony if the sentence includes a fine or a term of imprisonment or a term of probation higher than the maximum established by law or by the Sentencing Commission.”); 404(b) (“the government may . . . file a notice of appeal . . . for review of a final sentence imposed for a felony if the sentence includes a fine or a term of imprisonment or a term of probation higher than the maximum established by law or by the Sentencing Commission.”). For example, consider Section 402 of the Act. Section 402 allows a criminal defendant to appeal a final judgment or order to the Supreme Court. If a criminal defendant does not like their final judgment or order, he can ask us to review it and give it another shot. To do so, he must first file a notice of appeal in the District Court and then file his brief and argument in the Supreme Court. See this Court’s Rule 17.

*

Certiorari is considered the normal pathway for review in this Court. There is nothing wrong with that. But it currently means that appeals are underutilized when there is overwhelming value to them. It should be utilized more by criminal defendants and the Government alike. It offers significant value to the parties that use them, and it enables our community’s judicial economy to become active and flourish. This case might have been better off going through the appeals process rather through certiorari. In going through certiorari, petitioner fatigued himself of legalese which ended off with him losing the case on his own accord.

SEPTEMBER 22, 2025

Judicial Discipline

No. D–1. IN RE ARKHIPOVI. On court motion. Discipline is imposed. Judge Arkhipovi of the District of Columbia is suspended from the conduct of his judicial duties for a period of two weeks and is further sanctioned with a requirement for future decisions, opinions, and orders to be countersigned by the Chief Judge of the District Court where he sits. The countersignature requirement expires at the discretion of the Chief Judge, but not sooner than the first of November of this year.

CHIEF JUSTICE INSLEE, concurring.

I vote to discipline Judge Arkhipovi and impose the sanctions as detailed in the order. The Twenty-Eighth Amendment empowers this Court to sanction and suspend a judge upon a determination of “conduct which is prejudicial to the administration of justice,” among other reasons. See Amdt. 28. Judge Arkhipovi of the District of Columbia released a public document masquerading as a court decision. That feux document embarked on many advocacies and grievances about Justice Department policy, ill-suited for a Court—much less a judge—to make.

I have two threshold observations in response to my Brother FEELINGS.

First, his analysis and reasons majorly rest on the reallife Code of Conduct for U. S. Judges. I would not stretch to that realm. Consistent with our community’s tradition that real-life provisions are at most persuasive and never binding, I would hone the analysis and reasoning on such provisions existing in our community. Our community does not have a code of conduct, but we do have a Constitution, we do have a Congress that passes its own laws, and thankfully we are allowed to use real-life Supreme Court precedent as persuasive authority. See Amdt. 30. In determining Judge Arkhipovi’s conduct for Twenty-Eighth Amendment purposes, I would stick to these authorities.

Second, I fear that this action may set the precedent of untailored sanctions. The Twenty-Eighth Amendment offers no guidance for judicial sanctions. And my Brother FEELINGS offers no discernible rule or standard to guide or tailor the countersignature sanction against Judge Arkhipov. To be sure, I understand that we have imposed a countersignature sanction to remedy rogue issuances of opinions and orders by Judge Arkhipovi. This preliminary sketch of an explanation is the only basis any member of this Court has offered for the countersignature sanction we have imposed. For the benefit of this Court and the Constitution, we ought to bring clarity to our judicial disciplinary procedures soon.

At bottom, Judge Arkhipovi’s conduct is unbecoming. Engaging in blatant political dialogue from the comfort of his chambers puts the judicial post into disrepute. He has done so forthwith, and I therefore vote to discipline him on that basis.

JUSTICE FEELINGS, with whom JUSTICE SAICHARI joins, concurring.

Judge Arkhipovi—assigned as a Judge of the District Court for the District of Columbia—distributed a document titled as a “memorandum opinion.” This document was not, as the name suggests, an opinion of the District Court. Instead, the document aired a list of grievances regarding the efficacy of the Justice Department and made some suggestions as to what ought to be done in order to ‘rectify’ the executive’s mistakes. When confronted about this document, Judge Arkhipovi declined to remove the message and the document and reiterated to the Chief Judge and supervising Justices that he is permitted to do so as a sanction. Judge Arkhipovi then excused himself from the discussion without rectifying his actions.

I

The Supreme Court of the United States is, as the name suggests, exactly that: supreme. We come now to exercise that supreme judicial authority—much similar as the President would exercise his supreme executive authority—to issue sanctions and discipline to a judge of the inferior District Court. The framers of our Constitution, some of which now sit on this very Court, had foresight over the kind of judicial misconduct that is now afoot in our nation. Having that foresight, the provisions contained in the Twenty-Eighth Amendment were included in the original draft of the Constitution to provide recourse in situations like these.

The gravity of this exercise is not lost on me. This is the first exercise of the disciplinary powers held under the Twenty-Eighth Amendment. Nonetheless, the time is high and the necessity is clear for the Supreme Court to take adequate steps at this point to maintain public confidence in the federal judiciary.

II

It is an imperative part of the impartial administration of justice that the judicial officers of the nation remain fundamentally separate from the body which brings the charges—normally the executive branch. Indeed, the judicial branch is ordinarily powerless to issue

criminal penalties unless the executive branch brings charges against a person subject to its jurisdiction.¹

This impartiality is also set forth as a non-negotiable part of our justice system by the adoption of a set of canons in a code of conduct. One such rule is that judges ought to have respect for the law. See Canon 2(A), Code of Conduct for U. S. Judges. Where a judge acts in a manner which degrades “public confidence in the integrity and impartiality of the judiciary” they have violated the provisions of this Canon. *Id.*

Furthermore, Judges are prohibited from engaging in political activity whatsoever. A blanket restriction applies, noting that “judge[s] should not engage in any other political activity.” Canon 5, Code of Conduct for U. S. Judges. Where a document is made solely for the public viewing, solely for the purpose of influencing the political branches, or for some combination of those two goals, that matter is unquestionably political in nature.

When asked about these matters, Judge Arkhipovi defended his actions briefly and then absented himself from that confrontation. His voluntary absence is noted and regarded as acquiescence on this matter.

* * *

Having found a willful case of misconduct in office and the willful conduct of actions which are prejudicial to the fair administration of justice, these sanctions are ultimately appropriate. It is most disturbing that this is the President’s selection to be the next Attorney General of this nation. A disgraced judicial officer should not be vested with increased authority as some kind of reward for taking steps and strides towards breaking down the separation of the powers.

¹ There are some limited exceptions to this rule, *e.g.*, the inherent contempt powers of Courts.

REPORTER'S NOTE

The next page is purposefully numbered 201. The numbers between 112 and 201 were intentionally omitted, in order to make it possible to publish the orders with *permanent* page numbers, thus making the official citations available upon publication of the preliminary prints of the United States Reports.

OPINION OF INDIVIDUAL JUSTICE IN CHAMBERS

IN RE CHARLES KANEKO

ON APPLICATION FOR STAY

No. 25A1. Decided June 27, 2025

Applicant Charles Kaneko's request for stay of the contempt sentencing order is granted. The traditional stay factors are essentially a balance of the equities considering the harms associated with a stay against adverse parties. Since there are no adverse parties here, the stay factor showings Charles Kaneko must make lessens. Charles Kaneko meets the traditional stay factors because he is likely to suffer irreparable harm while he seeks appeal absent a stay and the stay will not substantially injure an adverse party. Charles Kaneko meets the remaining stay factors—even though the showings are not fully sufficient—because the Court has previously recognized and accepted that litigants do not meet Court expectations.

CHIEF JUSTICE INSLEE, Application Justice.

Charles Kaneko proceeding as a *pro se* applicant seeks a stay of the District Court's sentencing order in a criminal contempt proceeding. This application is submitted to me in my capacity as Application Justice. See this Court's Rule 20.

On June 26, the District Court held Charles Kaneko in criminal contempt. Eager to complete the contempt proceeding, the District Court found him guilty of criminal contempt under F.C.C. § 1341 and sentenced him to the maximum term of imprisonment the same day. Charles Kaneko then sought appeal to the presiding magistrate. With no success, he then filed an application for a stay in this Court, which is now before me.

To begin, the application requires some clarification. First, the application opens with a request for the *District Court* to stay the judgment of the District Court. See Application 1. But its caption and the rest of the document is addressed to this Court. I understand this application to be addressed to this

Opinion in Chambers

Court, and not the District Court. And second, since the application conflicts by asking for a stay of the judgment and stay of “the District Court’s [sentencing] order,” see Application 2, I construe the application as seeking to stay the sentencing order, and not the judgment. If an applicant were seeking a stay of a judgment alone, it would have no practical effect. A stay of the sentencing order in this context would provide relief the applicant is looking for.

Because it takes time to decide a case on appeal, a stay would buy enough time to find recourse “when there is insufficient time to resolve the merits and irreparable harm may result from delay.” *Nken v. Holder*, 556 U.S. 418, at 432 (2009). Suppose Peter Griffin was found civilly liable in court, and the court ordered him banned from purchasing firearms (assume the court had no basis to ban him). Here, Griffin has a clear Second Amendment claim he could appeal. But litigating takes time. For one, researching and writing consume a great deal of time. And on top of that, courts have procedural rules to go through. Typically, the District Court, for example, gives defendants a day or two to respond to a complaint. And after that, the District Court will allow parties to file further pleadings or documents (like motions) for another day or two. In this Court, considering a certiorari petition could take 4 days at most. That isn’t even counting the merits stage, which could take a week or more to resolve. For Peter Griffin, that is a week too many of his Second Amendment rights deprived. This is where a stay saves the day. A litigant can obtain a stay, eliminating irreparable harm, while the underlying merits run their course. And consider too for Griffin what would be beneficial for him: staying the judgment declaring him liable, or staying the order banning him from buying firearms? If you said to stay the order, you are correct. CharlesKanekoa, in applying for a stay, has represented that he next intends to petition for certiorari. Staying the sentencing order would give

Opinion in Chambers

him the relief he seeks, instead of the judgment, should his application be successful.

And I am satisfied that his application is. The four factors stated in *Nken* govern the traditional assessment of whether to grant a stay. The factors are as follows: “(1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits; (2) whether the applicant will be irreparably injured absent a stay; (3) whether issuance of the stay will substantially injure the other parties interested in the proceeding; and (4) where the public interest lies.” *Id.*, at 434 (quoting *Hilton v. Braunskill*, 481 U. S. 770, 776 (1987)). But what these factors essentially are is a balance of equities—an equitable judgment considering the harms associated with an applicant and respondent that may arise out of whatever is sought to be stayed. Here’s the elephant in the room though: there is no respondent. There is no adversary at all. There is only one party in this case, and it’s the applicant. The only harm that may arise if the sentencing order were enforced would only affect the applicant, period. And even though the applicant bears the burden in showing the four factors, it is my judgment that the burden lessens to some extent when there is no adversary, because, as I’ve said, the factors are essentially a balance of equities between two parties.

For the second and third factors, CharlesKanekea clears. Absent a stay, CharlesKanekea may suffer irreparable harm while he seeks review (which he says he will seek it). The third factor may very well be thrown out the window. The only “other party” that may be interested here is the District Court. In my view, the District Court will not be *substantially* injured by the issuance of a stay.

The first and fourth factors are more difficult. For the first factor, it’s hard to follow applicants’ reasoning without being given a proper statement of the case. CharlesKanekea simply says that there are serious constitutional concerns and complains about the rushed sentence. For the fourth factor, he

Opinion in Chambers

says that the public interest favors the appellate process to do its job. Obviously, the public relies on courts for important purposes to do important work. I favor doing my job too. But saying so does not pass this factor. This application, especially in addressing the first and fourth factors for a stay, is lackluster. Nonetheless, I am satisfied with it. Papers in this Court—except our orders and opinions—are regrettably lackluster everywhere. And I mean no disrespect to the applicant, or any other litigant that has or will come before this Court. This is simply an unfortunate symptom of our small judicial economy that courts have struggled with since the birth of our community. This Court has recognized that litigants before us may not meet the standards we require or expect; indeed, they may be below standards. See *Itistheman4 v. United States*, 1 U. S. 5, 6 (2025) (“[N]ot a single coherent argument based in fact or law has been brought forth before this Court during the entire course of these proceedings.”). But that’s fine, and we carry on. Considering this, I am satisfied that CharlesKaneKo’s showings are sufficient to warrant a stay.

In closing, I have one observation. Before filing a stay with this Court, CharlesKaneKo sought a formal appeal to his presiding judge (in this case a Magistrate)—the same judge who rendered his judgment. Unknown to many, and uncommon everywhere, he can do that. The Criminal Procedure Act of 2025, §12, allows a defendant to appeal “a conviction or sentence if they believe legal errors occurred during trial or sentencing” before appealing to this Court. In fact, there are many other avenues for review and appeal available to litigants, and in particular the Government and defendants in criminal proceedings, like in the Judicial Procedure and Criminal Justice Enhancement Act.

Opinion in Chambers

* * *

Accordingly, the application for a stay is granted. The June 26, 2025, contempt sentencing order of the United States District Court for the District of Columbia, No. 1:25-cr-0143, is stayed pending the disposition of a petition for writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

It is so ordered.